



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9632 (EXTENSION)
THIRD REVISION August 23, 1990

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9632 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1999. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

for Ann Mazzullo
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

5/15/97
(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Eurotainer SA
Paris, France
(U.S. AGENT: Eurotainer USA, Inc.
Somerset, NJ)

March 11, 1997

Arbel-Fauvet Rail
Paris, France
(U.S. AGENT: C.J.B. International, Inc.
Washington, DC)

April 29, 1997



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Handwritten signature/initials

DOT-E 9632
(THIRD REVISION)

1. Arbel-Fauvet-Rail, Paris, France, (U.S. Agent: Eurencom, Washington, D.C.), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer the packaging described in paragraph 7 below for use in the transportation of the flammable and nonflammable liquefied compressed gases described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of non-DOT Specification IMO Type 5 portable tanks, and provides no relief from any regulations other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Eurotainer S.A., Paris France (U.S. Agent: Eurotainer U.S. Inc., New York, N.Y.) - PTE-1.
Chemical Industries of Northern Greece, S.A., Thessaloniki, Greece (U.S. Agent: Eurencom, Washington, DC.) - PTE-2.

2. BASIS. This exemption is based on Arbel-Fauvet-Rail's applications dated March 27 and June 13, 1990, and additional information dated June 25, 1990, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Eurotainer U.S. Inc.'s applications dated January 22, 1990.
Chemical Industries of Northern Greece, S.A. application dated April 5, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class).

Chlorodifluoroethane, Difluoroethane, Butadiene inhibited, Butane and butane mixtures, Butylene, Cyclopropane, Dimethyl ether, Isobutylene, Propylene, Vinyl chloride stabilized, Isobutane, Propane, Dimethylamine anhydrous, Ethylamine, Methylamine anhydrous, Methyl chloride, and Trimethylamine anhydrous classed as flammable gases; Chlorodifluoromethane, Dichlorodifluoromethane, Chloropentafluoroethane, azeotropic mixtures of chlorodifluoromethane and chloropentafluoroethane,

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Dichloromonofluoromethane, Dichlorotetrafluoroethane, Chlordifluorobromoethane, Dichlorodifluoromethane and difluoromethane constant boiling mixture, and Hexafluoropropylene classed as nonflammable gases; Ethyl chloride, classed as flammable, liquid; and other flammable and nonflammable gases specifically identified to and acknowledged in writing by, the Office of Hazardous Materials Transportation (OHMT) prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name, or generic description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.315, 178.245.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.
7. SAFETY CONTROL MEASURES.
 - a. Packaging prescribed is a non-DOT specification portable tank, mounted in ISO frame, designed and constructed in accordance with either (a) Arbel-Fauvet-Rail drawings nos. Co 168357 Rev. 0, Co 168407, or (b) Arbel-Fauvet-Rail drawings nos. C 300758 Rev. A, Co 169233 Rev. A, and other drawings, technical specifications and calculations on file with the OHMT, and in compliance with the following:
 - (1) Code - Complies with DOT Specification 51 except that the tanks have bottom outlets. Tanks are ASME Code "U" stamped; IMO Type 5.
 - (2) Insulation - None; Sunshield is optional.
 - (3) Water capacity (U.S. Gallons) - 4,438
 - (4) Material - SA-738 Grade A carbon steel
(outside dia.) X (length) X (thickness)
 - (5) Tank Size (inches) 78.74 233.86 0.708(min.)
Head Thickness - 0.653 (min.)
Weld Joint Efficiency - 1.0
Corrosion Allowance - 0.0
Number of Baffles - 2 or 3
 - (6) Design Pressure (psig) - 336.63 psig.

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code. Operating Pressure (psig) - 332.72 psig (maximum).

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- (7) Test Pressure, Minimum (psig) - 507.63
- (8) Openings - One (1) - 6.9 inch diameter opening for the pressure relief device and one (1) - 3.15 inch diameter inspection opening on the top; one (1) - 18.5 inch diameter manhole on the head; one (1) - 2.56 inch diameter liquid phase valve and one (1) 2.56 inch diameter vapor phase valve on the bottom.

NOTE: Each bottom outlet valve must be provided with a shear section that meets the requirements of 49 CFR 178.337-12.

- (9) Tank surface area (square feet) - 425
- (10) Pressure Relief Devices - Either One (1) - 3 inch diameter spring loaded safety relief valve in series with and outboard of one (1) - 3 inch diameter rupture disc all set at 332.72 psig or one (1) - 3 inch diameter spring loaded safety relief valve set at 332.72 psig. Total relief device capacity is 1,608,865 SCFH

NOTE: The 3-inch diameter rupture disc is optional and may only be in place when required by DOT Regulations or the IMDG Code.

- (11) G-Loadings: Vertical down 2 : Vertical up 2 : Longitudinal 2 : and Transverse 2 .
- (12) Maximum Gross Weight (pounds:) - 67,197
- (13) Maximum Commodity Weight (pounds) - 49,780 (3 surge baffles) - 50,000 (2 surge baffles)
- (14) Tare Weight (pounds) - 17,417 (3 surge baffles)
- 17,197 (2 surge baffles)
- (15) Design Specific Gravity - 1.34 (3 surge baffles)
- 1.35 (2 surge baffles)
- (16) Design Temperature Range (°F) - 4 to 131

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

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- b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
- c. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 9632".
- d. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
- e. No product may be shipped that has venting requirements exceeding 1,608,865 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in Compressed Gas Association (CGA) pamphlet S-1.2.
- f. A test report documenting a satisfactory ISO prototype test for this tank design must be on file with the OHMT prior to the first shipment.
- g. The tank must be filled by weight in accordance with the provisions of 49 CFR 173.315. Tanks without baffles may not be loaded to less than 80 percent by volume.
- h. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five years in accordance with 49 CFR 173.32 as prescribed for DOT Specification 51 portable tanks.
- i. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.
- j. DOT-E 9632 must be stamped on the metal manufacturer's data plate on the line which reads "U.S. DOT Specification No."
- k. For each portable tank, the manufacturer must prepare a certificate which must be signed by a responsible official of the manufacturer and an authorized inspection agency certifying that the portable tank is designed and constructed in accordance with the ASME Code and this exemption. The certificate for the first portable tank fabricated must be submitted to the OHMT prior to the initial shipment.

l. When the portable tank is required to have a combination safety device by the DOT Regulations or the IMDG Code, the pressure gauge located between the spring loaded safety valve and the rupture disk must indicate 0 psig after the tank is filled. If the pressure gauge indicates any value other than 0 psig, the tank must be emptied and a new rupture disk must be installed.

m. Portable tanks used for the transportation of propylene must be fitted with a sunshield.

n. Carriers used to transport the portable tanks authorized under the terms of this exemption must have a "Conditional" or "Satisfactory" or safety rating from FHWA, as specified in 49 CFR, Part 385.

9. REPORTING REQUIREMENTS.

a. The owner of the tanks covered by this exemption shall provide to the OHMT a list of all shippers who have shipped under this exemption and a shipping experience report every six months from the effective date of this exemption. The shipping experience report shall contain approximate number of shipments made during the previous six months and any difficulties encountered.

b. The holder or parties to this exemption, as identified in paragraph 1 above, shall contact the OHMT immediately after any of the tanks covered by this exemption are sold to another party.

c. Any incident involving loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. February 28, 1992.

Issued at Washington, D.C.


Alan I. Roberts

Director

Office of Hazardous Materials Transportation

AUG 23 1991

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.